



File No: EXP202315839

RESOLUTION OF TERMINATION OF THE PROCEDURE DUE TO VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On March 4, 2024, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against A.A.A. (hereinafter, the respondent), through the Agreement transcribed below:

<<

Procedure No: EXP202315839 (PS/00070/2024)

AGREEMENT TO INITIATE SANCTIONING PROCEEDINGS

From the actions taken by the Spanish Agency for Data Protection and based on the following,

FACTS

FIRST: On 29/09/23, B.B.B. (hereinafter, the complainant) submitted a complaint to the Spanish Agency for Data Protection.

The complaint is directed against A.A.A. (EXESRIVAS GESTIÓN PATRIMONIAL) with NIF: ***NIF.1 (hereinafter, the respondent), for the alleged violation of Law 34/2002, of July 11, on Information Society Services and Electronic Commerce (LSSI).

The facts stated by the complainant are as follows:

"I placed an advertisement for the sale of a property on the real estate portal Idealista, and in that advertisement, I clearly and emphatically express my refusal to give my consent to any real estate agency or intermediary company to make any type of communication, neither by phone nor in writing, through messages. Even though my refusal to receive such commercial calls or messages via WhatsApp is well drafted, I have received a commercial message from a real estate agency, despite not giving my consent to do so."

Along with the complaint, the following documentation is attached:

- Screenshot of the advertisement on the real estate portal, where the refusal to such calls or commercial contacts can be read:

o " (...) DO NOT CALL OR WRITE REAL ESTATE AGENCIES OR INTERMEDIARIES. I DO NOT GIVE MY CONSENT TO RECEIVE CALLS OR MESSAGES FROM REAL ESTATE AGENCIES OR INTERMEDIARY COMPANIES. THEY WILL BE REPORTED TO THE AEPD FOR CONSTITUTING PROHIBITED COMMERCIAL CALLS SINCE JULY 1, 2023 (...)"

- WhatsApp message received:

o Good morning, B.B.B., I am C.C.C. from the EXES real estate agency, we can help you manage the sale of your property, we handle all of southwest Madrid and have a good client portfolio. WE DO NOT CHARGE YOU AS THE SELLER, our buying clients pay us the commission and WE DO NOT WORK EXCLUSIVELY, so if you do not like our work or sell on your own, just let us know. We can meet to talk without any commitment.

SECOND: On 28/12/23, the Director of the Spanish Agency for Data Protection issued an agreement admitting the processing of the complaint submitted, in accordance with Article 65 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (LOPDGDD).

THIRD: The General Subdirectorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the investigative powers granted to control authorities in Article 58.1 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of 27/04/16, regarding the Protection of Natural Persons with regard to the Processing of Personal Data and the Free Movement of such Data (GDPR), and in accordance with the provisions of Title VII, Chapter I, Section two, of the LOPDGDD, being aware of the following aspects:

- It is verified that the respondent company has a profile on the website "Idealista":

<https://www.idealista.com/pro/exesrivas/venta-viviendas>.

- A request was made to the entity IDEALISTA S.L. requesting information about the domain in the

name of the company, EXESRIVAS GESTIÓN PATRIMONIAL, informing this Agency that the domain holder belongs to A.A.A.; NIF: ***NIF.1; Address: ***ADDRESS.1; E-mail: info@exesrivas.com.

- On 29/01/24, a request was made to A.A.A. to provide information regarding the complaint submitted.

- On 30/01/24, a response was received to the request from A.A.A., stating the following:

o 1- I am the manager of a small family real estate agency that has nothing to do with franchises or other similar forms of business, said to make it clear that I do not have imposed ways of working.

o 2- In the training we provide to our salespeople, we always ask and require that when contacting potential clients, they...

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

3/9

respect rest periods and above all, the express wish as is the case of not wanting to be disturbed.

o

3- As may have been the case, there is room for error or lack of experience in detecting among all the text of the advertisement that the property owner expressly indicated not to be disturbed.

o

4- Although I do not doubt that this was the case, unfortunately, although we have tried, that advertisement no longer exists to be able to contrast it. Likewise, I reiterate that we have never experienced anything similar, nor has anyone conveyed their anger to us for having disturbed them when they expressly indicated so in their advertisement.

o

5- In favor of my colleague and employee, it should be noted that at that time she was in training, but above all, that she never responded in any way to B.B.B. after their message, making it quite clear in my opinion that it was all the result of an error, which I am sure she has not committed again because, as I said, it is something we strictly adhere to in our humble business.

o

6- Against her, I will say that I did not find out about what happened until yesterday, so I could never call or write to B.B.B. to apologize. The error made would not have changed in any way, but I am sure they would have appreciated receiving an apology, of course. And today I have apologized to them through the same channel; I attach an image of the text."

- With the response to the information request, the respondent provides three screenshots of the messages apparently sent to the claimant via the WhatsApp application (the recipient's phone number cannot be seen). In these messages, the respondent apologizes for any inconvenience they may have caused.

- On 01/02/24, an information request is sent to A.A.A. requesting the details of the company EXESRIVAS GESTIÓN PATRIMONIAL. On that date, a response is received from A.A.A. indicating that they are self-employed and providing a copy of their ID.

- On 16/01/24, a postal request is sent to the company EXESRIVAS GESTIÓN PATRIMONIAL, at the address CONSTITUCIÓN 2 PLANTA ALTA 28521 RIVAS-VACIAMADRID- MADRID, indicated on their website <https://exesrivas.com/>, which is returned to the sender with the message "Unknown."

LEGAL GROUNDS

I.

Competence.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

4/9

The Director of the Spanish Agency for Data Protection is competent to initiate and resolve this

Sanctioning Procedure, in accordance with the provisions of Article 43.1, second paragraph, of the LSSI and as established in Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD.

The fourth additional provision of the LOPDGDD establishes, regarding the "Procedure in relation to the powers attributed to the Spanish Agency for Data Protection by other laws," that: "The provisions of Title VIII and its implementing regulations shall apply to the procedures that the Spanish Agency for Data Protection must process in the exercise of the powers attributed to it by other laws."

II.

Summary of the events:

According to the claimant, after placing an advertisement for the sale of a property on the real estate portal "Idealista" and expressing their refusal to receive any type of communication in the advertisement, they received, via WhatsApp, a commercial message from a person claiming to be from the real estate agency EXES.

At the request of this Agency, the person responsible for the real estate agency that contacted the claimant states that it was all due to an error by one of their colleagues, who "was in training at that time" and that upon learning of what happened, they immediately apologized to the claimant.

III.

Classification of the possible infringement committed by sending commercial communications

The fact that the respondent sends advertising messages to the claimant without them having previously requested or expressly authorized them may constitute a violation of the provisions of Article 21 of the LSSI, as it establishes the following:

"1. The sending of advertising or promotional communications by email or other equivalent electronic communication means that have not been previously requested or expressly authorized by the recipients is prohibited.

2. The provisions of the previous section shall not apply when there is a prior contractual relationship, provided that the provider has lawfully obtained the contact details of the recipient and uses them to send commercial communications regarding products or services of their own company that are similar to those initially contracted with the client.

In any case, the provider must offer the recipient the possibility of opposing the processing of their data for promotional purposes through a simple and free procedure, both at the time of data collection and in each of the commercial communications sent to them.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

5/9

When communications have been sent by email, such means must necessarily consist of the inclusion of a valid email address or other electronic address through which this right can be exercised, and the sending of communications that do not include such address is prohibited."

IV.

Proposal for Sanction

The aforementioned infringement of Article 21 of the LSSI is classified as minor in Article 38.4.d) of said regulation, which qualifies as such, "The sending of commercial communications by email or other equivalent means of electronic communication when the requirements established in Article 21 are not met and do not constitute a serious infringement."

In accordance with these criteria, it is deemed appropriate to impose an initial sanction of 300 euros (three hundred euros) for the infringement of Article 21 of the LSSI, for sending advertising messages to the complainant without their request or express authorization.

Therefore, in light of the above, by the Director of the Spanish Agency for Data Protection,

IT IS AGREED:

FIRST: TO INITIATE SANCTIONING PROCEDURE against A.A.A. (EXESRIVAS GESTIÓN PATRIMONIAL) with NIF: ***NIF.1, for the violation of Article 21 of the LSSI, classified as minor in

Article 38.4.d) of said regulation.

SECOND: TO APPOINT R.R.R. as Instructor, and S.S.S. as Secretary, if applicable, indicating that either of them may be recused, if applicable, in accordance with the provisions of Articles 23 and 24 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (LRJSP).

THIRD: TO INCORPORATE into the sanctioning file, for evidentiary purposes, the complaint filed by the complainant and its documentation, all of which are part of this administrative file.

FOURTH: THAT for the purposes provided in Article 64.2 b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the sanction that may correspond would be 300 euros (three hundred euros) for the infringement of Article 21 of the LSSI, without prejudice to what results from the instruction of this sanctioning procedure.

FIFTH: TO NOTIFY: this agreement to initiate the sanctioning file to A.A.A., granting a hearing period of ten working days for them to formulate allegations and present the evidence they deem appropriate. If no allegations are made to this initiation agreement within the stipulated period, it may be considered a proposal for resolution, as established in Article

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

6/9

64.2.f) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP).

In accordance with the provisions of Article 85 of the LPACAP, in the event that the sanction to be imposed is a fine, you may acknowledge your responsibility within the period granted for submitting allegations to this initiation agreement; this will entail a reduction of 20% of the sanction to be imposed in this procedure, which in this case amounts to 60 euros. With the application of this reduction, the sanction would be set at 240 euros, resolving the procedure with the imposition of this sanction.

Similarly, you may, at any time prior to the resolution of this procedure, make voluntary payment of the proposed sanction, which will imply a reduction of 20% of its amount, equivalent in this case to 60 euros. With the application of this reduction, the sanction would be set at 240 euros, and its payment will imply the termination of the procedure, without prejudice to the imposition of the corresponding measures.

The reduction for the voluntary payment of the sanction is cumulative with the one applicable for the acknowledgment of responsibility, provided that this acknowledgment of responsibility is made within the period granted to submit allegations to the opening of the procedure. The voluntary payment of the amount referred to in the previous paragraph may be made at any time prior to the resolution. In this case, if both reductions are applicable, the amount of the sanction would be set at 180 euros (one hundred eighty euros).

In any case, the effectiveness of either of the two mentioned reductions will be conditioned upon the withdrawal or waiver of any action or administrative appeal against the sanction.

If you choose to proceed with the voluntary payment of any of the amounts indicated above (240 or 180 euros), you must make it effective by depositing it into account No. ES00 0000 0000 0000 0000 opened in the name of the Spanish Agency for Data Protection at CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason for the reduction of the amount to which you are adhering. You must also send the proof of payment to the General Subdirector of Inspection to continue with the procedure in accordance with the amount deposited.

The procedure will have a maximum duration of nine months from the date of the initiation agreement. If this period elapses without a resolution being issued and notified, it will expire, and consequently, the file will be archived; in accordance with the provisions of Article 43.2 of the LSSI.

In compliance with Articles 14, 41, and 43 of the LPACAP, you are hereby informed that, henceforth, notifications sent to you will be made exclusively electronically, through the Single Enabled Electronic Address (dehu.redsara.es), and that, if you do not access them, your rejection will be recorded in the file, considering the procedure completed and continuing with the process. You are informed that you

can identify an email address before this Agency to receive the notice of availability of notifications and that the lack of this notice will not prevent the notification from being considered fully valid. Finally, it is noted that in accordance with the provisions of Article 112.1 of the LPACAP, no administrative appeal is available against this act.

Mar España Martí

Director of the Spanish Agency for Data Protection.

>>

SECOND: On March 7, 2024, the respondent has proceeded to pay the sanction in the amount of 180 euros, making use of the two reductions provided for in the previously transcribed Initiation Agreement, which implies the acknowledgment of responsibility.

THIRD: The payment made, within the period granted to submit allegations to the opening of the procedure, entails the waiver of any action or administrative appeal against the sanction and the acknowledgment of responsibility in relation to the facts referred to in the Initiation Agreement.

LEGAL GROUNDS

I

Competence

In accordance with the provisions of Article 43.1 of Law 34/2002, of July 11, on Information Society Services and Electronic Commerce (hereinafter LSSI) and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

Finally, the Fourth Additional Provision "Procedure in relation to the competencies attributed to the Spanish Agency for Data Protection by other laws" establishes that: "The provisions of Title VIII and its development regulations shall apply to the procedures that the Spanish Agency for Data Protection must process in the exercise of the competencies attributed to it by other laws."

II

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

8/9

Termination of the Procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), under the heading "Termination in Sanctioning Procedures" provides as follows:

"1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.

2. When the sanction is solely of a pecuniary nature or when it is possible to impose a pecuniary sanction and another of a non-pecuniary nature but the impropriety of the latter has been justified, voluntary payment by the presumed responsible party, at any time prior to the resolution, will imply the termination of the procedure, except regarding the restoration of the altered situation or the determination of compensation for the damages caused by the commission of the infringement.

3. In both cases, when the sanction is solely of a pecuniary nature, the competent body to resolve the procedure shall apply reductions of at least 20% on the amount of the proposed sanction, which shall be cumulative. The aforementioned reductions must be specified in the notification of initiation of the procedure, and their effectiveness will be conditioned upon the withdrawal or renunciation of any action or administrative appeal against the sanction. The percentage of reduction provided for in this section may be increased by regulation."

In accordance with the above,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE the termination of procedure EXP202315839, in accordance with the provisions of Article 85 of the LPACAP.

SECOND: TO NOTIFY this resolution to A.A.A.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative route as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within a period of two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

936-040822

Mar España Martí

Director of the Spanish Agency for Data Protection

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

9/9

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es